



INDIAN POLITY



FRE
CAN
S



CONSTITUTIONAL BODIES ELECTION COMMISSION

MODULE – 94

ELECTION COMMISSION OF INDIA

CONSTITUTIONAL BODIES

ELECTION COMMISSION

UNION PUBLIC SERVICE COMMISSION

STATE PUBLIC SERVICE COMMISSION

FINANCE COMMISSION

NATIONAL COMMISSION FOR SCs

NATIONAL COMMISSION FOR
BACKWARD CLASSES

NATIONAL COMMISSION FOR STs

SPECIAL OFFICER FOR LINGUISTIC MINORITIES

COMPTROLLER AND AUDITOR GENERAL

ATTORNEY GENERAL OF INDIA

ADVOCATE GENERAL OF STATE

The Election Commission is an all-India body in the sense that it is common to both the Central government and the state governments.



- 1 Election commission is not concerned with the elections to panchayats and municipalities in the states.
- 2 For this, the Constitution of India provides for a separate State Election Commission.

ARTICLE 324

ELECTION COMMISSION

- President
- Vice-President
- Lok Sabha
- Rajya Sabha
- MLA
- MLC

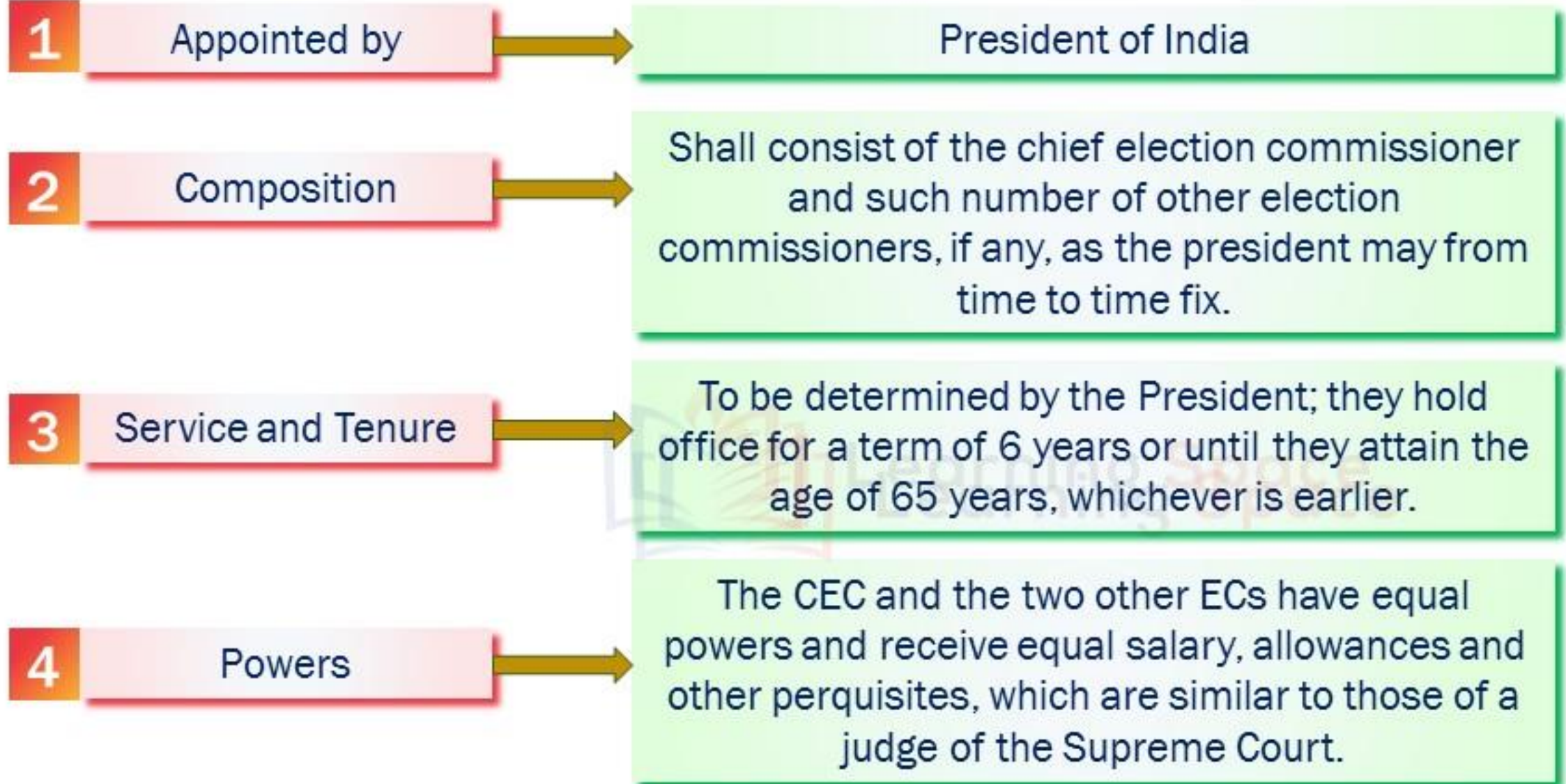
STATE ELECTION COMMISSION

- Panchayats
- Municipalities
- Corporations



It was setup on 26th Jan, 1950.

ELECTION COMMISSION OF INDIA



ELECTION COMMISSION OF INDIA

Service conditions of the chief election commissioner cannot be varied to his disadvantage after his appointment.



INDEPENDENCE OF ELECTION COMMISSIONERS



Security of tenure- he can be removed by the President on the basis of a resolution passed to that effect by both the Houses of Parliament with special majority, either on the ground of **proved misbehaviour or incapacity**.

Any other election commissioner or a regional commissioner cannot be removed from office **except on the recommendation of the chief election commissioner**.

FLAWS IN ELECTION COMMISSION**1**

The appointment of the Chief Election Commissioner and other Election Commissioners shall be made by the President

... Hence appointment by the Executive.

2

The appointment of the Chief Election Commissioner and other Election Commissioners shall, subject to the provisions of any law made in that behalf by Parliament.

... Law could not be enacted even after 69 years.

3

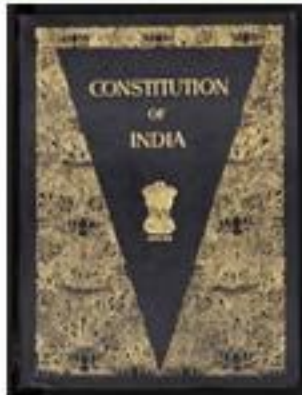
Removal of the Election Commissioners on the recommendation of CEC.

... Provisions are not sufficient.

FLAWS IN ELECTION COMMISSION

4

The Constitution has not prescribed the qualifications (legal, educational, administrative or judicial) of the members of the Election Commission.



5

The Constitution has not specified the term of the members of the Election Commission



No Voter to be Left Behind

6

The Constitution has not debarred the retiring election commissioners from any further appointment by the government.



FLAW NO. 7

FLAWS IN ELECTION COMMISSION

LACK OF POWER FOR DE-REGISTERING POLITICAL PARTIES



- 1 The Election Commission is the **registering authority** under Section 29A of the Representation of the People Act, 1951.

- 2 It has **no power to de-register** them even for the gravest of violations.
- 3 The EC has been seeking the power to de-register political parties, among many other reforms.
- 4 This was first suggested by the CEC in 1998 and reiterated number of times.
- 5 EC submitted an affidavit to the Supreme Court saying, it wanted to be empowered to de-register a political party, particularly in view of its constitutional mandate.

AS DECLARED BY NATIONAL PARTIES, 2017-18

Party	Known sources	Unknown sources		Total
		Electoral bonds	Other	
BJP	484	200	353	1027
Congress	79	15	105	199
BSP	41	0	10	51
NCP	3	0	5	8
Trinamool	5	0	<1	5
CPI	1	<1	<1	1+
Total	613	215	474	1293

Figures in Rs crore (rounded off); all national parties barring CPM.

Source: Association for Democratic Reforms, January 2019

POWERS AND FUNCTIONS OF ELECTION COMMISSION



- 1 To determine the **territorial areas of the electoral constituencies** throughout the country on the basis of the Delimitation Commission Act of Parliament.
- 2 To prepare and periodically revise **electoral rolls** and to register all eligible voters
- 3 To **notify the dates** and schedules of elections and to **scrutinise nomination** papers.
- 4 To **grant recognition** to political parties and allot election symbols to them.

POWERS AND FUNCTIONS OF ELECTION COMMISSION



- 5 To act as a court for settling disputes related to granting of recognition to political parties and allotment of election symbols to them
- 6 To appoint officers for inquiring into disputes relating to electoral arrangements.
- 7 To determine the code of conduct to be observed by the parties and the candidates at the time of elections
- 8 To prepare a roster for publicity of the policies of the political parties on radio and TV in times of elections.

POWERS AND FUNCTIONS OF ELECTION COMMISSION



SORRY BROTHER, WE DON'T NEED ANY BOOTH CAPTURERS THIS TIME. WE HAVE ALREADY HIRED COMPUTER HACKERS TO MANIPULATE THE ELECTRONIC VOTING MACHINES!

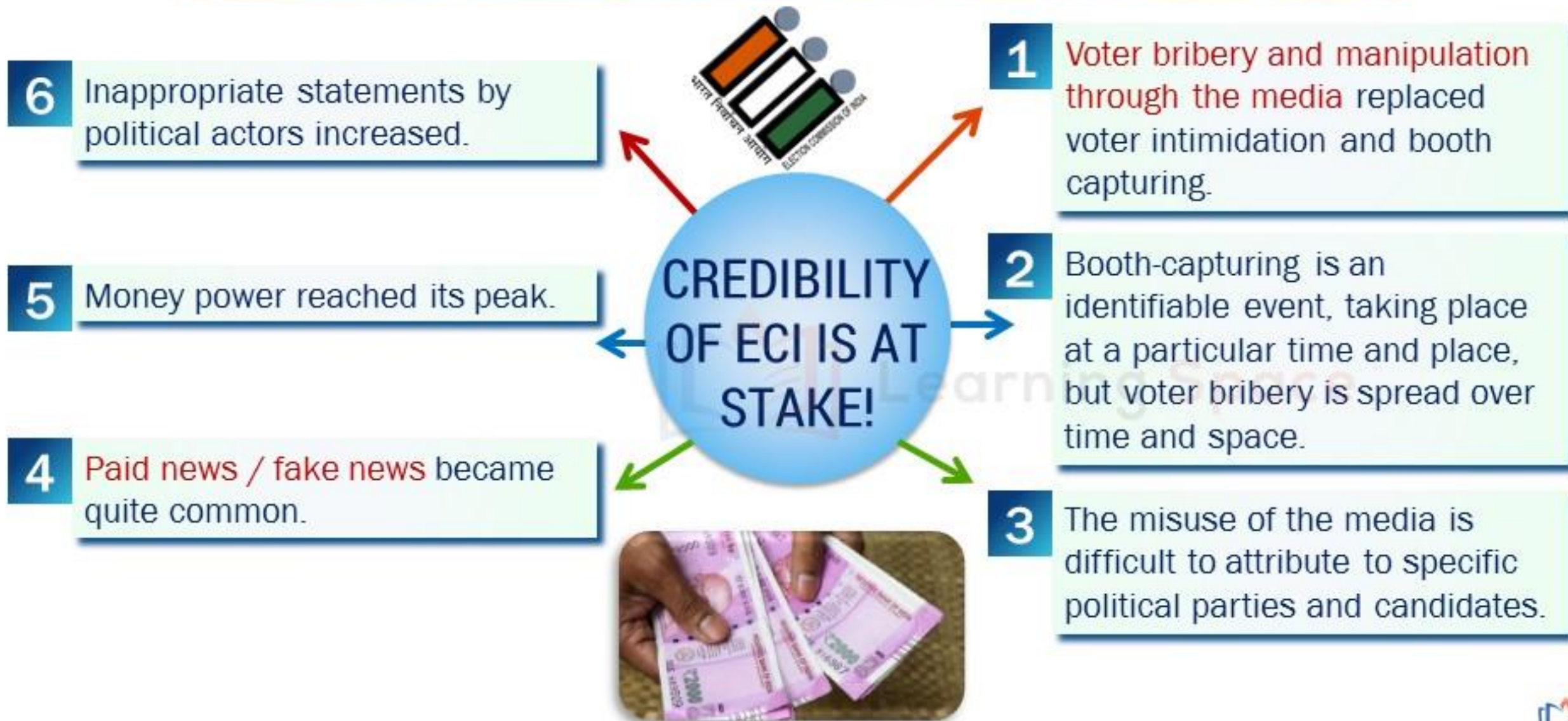
- 9 To advise the **president** on matters relating to the disqualifications of the members of Parliament.
- 10 To advise the **governor** on matters relating to the disqualifications of the members of state legislature
- 11 To **cancel polls** in the event of rigging, booth capturing, violence and other irregularities
- 12 To request the president or the governor for requisitioning the staff necessary for conducting elections.

POWERS AND FUNCTIONS OF ELECTION COMMISSION



- 13** To **supervise the machinery** of elections throughout the country to ensure free and fair elections
- 14** To advise the president whether elections can be held in a state under **president's rule** in order to extend the period of emergency after one year
- 15** To register political parties for the purpose of elections and grant them the **status of national or state parties** on the basis of their poll performance.

ELECTION COMMISSION ... NEW AGE CHALLENGES!



SOME OF THE RECENT ACTIONS OF ECI !

3 **cVIGIL** is the mobile application launched by the Election Commission for public to share audio visual proof of election related malpractices, when the Model Code of Conduct is in place.



1 Commission started adopting technology, such as **ERONet** through which all the 4,000 Assistant Returning Officers across the country are connected.

THEY ARE NOT SUFFICIENT!



2 Use of **EVMs** and **VVPATs**. R&D project for **two way electronic voting** is underway.

The challenges will be tougher and tougher, because of the emerging technological developments, social media, money power and other factors.

ELECTION PROCESS

TIME OF ELECTIONS

- Elections for the Lok Sabha and every state Legislative Assembly have to take place **every five years**, unless called earlier.
- The **President can dissolve Lok Sabha** and call a General Election before five years is up, if the Government can no longer command the confidence of the Lok Sabha, and if there is no alternative government available to take over.

SCHEDULE OF ELECTIONS

- The Constitution states that there **can be no longer than six months** between the last session of the dissolved Lok Sabha and the recalling of the new House, so elections have to be concluded before then.
- The Election Commission brings out the **notification** indicating the commencement of elections.
- Nominations are submitted.

ELECTION COMMISSION OF INDIA

ELECTION PROCESS

OATH or AFFIRMATION

- It is necessary for a candidate to make and subscribe an oath or affirmation before an officer authorised by the Election Commission.
- Candidate **confined in prison** – superintendent of the prison
- Candidate **confined to bed in a hospital**- Medical superintendent in charge of the hospital
- Candidate **outside India** – Indian Ambassador or High Commissioner

ELECTION CAMPAIGN

- Here, the candidates persuade people to vote for their parties.
- The official campaign lasts at least two weeks from the drawing up of the list of nominated candidates, and **officially ends 48 hours before polling closes**.
- During the election campaign, the political parties and contesting candidates are expected to abide by a MCC.
- Issuing of manifestos; Slogans, rallies and meetings.

ELECTION COMMISSION OF INDIA

ELECTION PROCESS

POLLING DAYS

- Polling is normally held on a number of different days in different constituencies, to enable the security forces and those monitoring the election to keep law and order and ensure that voting during the election is fair.

BALLOT PAPERS AND SYMBOLS

- Ballot papers are printed with the names of the candidates and the symbols allotted to each of the candidates.
- Candidates of recognised parties are allotted their party symbols.

ELECTION PROCESS

VOTING PROCEDURE

- Voting is **by secret ballot**.
- Polling stations are usually set up in public institutions, such as schools and community halls.
- Polling stations within 2kms of every voter and no polling stations should have to deal with more than 1400 -1500 voters.
- Each polling station is open for at least **eight hours** on the day of the election.

ELECTRONIC VOTING MACHINE

- An Electronic Voting Machine (EVM) is a **simple electronic device used to record votes** in place of ballot papers.
- It eliminates the possibility of invalid and doubtful votes which, in many cases, are the root causes of controversies and election petitions.
- It makes the process of counting of votes **much faster** than the conventional system.
- It reduces to a great extent the **quantity of paper** used.

ELECTION COMMISSION OF INDIA

ELECTION PROCESS

COUNTING OF VOTES

- 1** After the polling has finished, the votes are counted under **the supervision of Returning Officers and Observers** appointed by the Election Commission.
- 2** After the counting of votes is over, the Returning Officer declares the name of the candidate, to whom the largest number of votes have been given.
- 3** Elections to the Lok Sabha are carried out using a first-past-the-post electoral system.
- 4** The country is split up into separate geographical areas, known as constituencies, and the electors can cast one vote each for a candidate, the winner being the candidate who gets the maximum votes.



ELECTION PROCESS

MEDIA COVERAGE

- In order to bring as much **transparency** as possible to the electoral process, the media are encouraged and provided with facilities to cover the election, although subject to maintaining the secrecy of the vote.
- Media persons are given **special passes to enter polling stations** to cover the poll process and the counting halls during the actual counting of votes.

ELECTION PETITIONS

- Any elector or candidate can file an election petition if he or she thinks there has been malpractice during the election.
- An election petition is not an ordinary civil suit, but treated as a contest in which the whole constituency is involved.
- **Election petitions are tried by the High Court** of the state involved, and if upheld can even lead to the restaging of the election in that constituency.

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

For Information:

info.learningspacedigital@gmail.com

Visit us at:

www.learningspacedigital.com

0866 244 44 72

98499 42299

94415 27588